

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 06/26/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CIV063139

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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PLAINTIFF:      RESURGENCE  
FINANCIAL, LLC

vs.

DEFENDANT:    LAUREN TAMBELLINI

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NATURE OF PROCEEDINGS: CLAIM OF EXEMPTION HEARING

**RULING**

This matter was called on May 29, 2026, and continued to provide Collection Access, LLC with additional time to file a levy packet. Notice of hearing was filed by the Collect Access, LLC on May 4, 2026, on a claim of exemption.

Collect Access is the assignee of the judgment. The Writ of Execution lodged with the court dated October 28, 2025, indicates the total amount due the creditor is \$23,695.

Procedurally, the creditor assignee (and not the debtor (Laura Tambellini)) filed the claim of exemption. The creditor appears to ask the court to segregate social security deposits in the debtor's bank account from funds available in her savings to satisfy the debt. If the funds have been commingled or if the account is the result of social security deposits, the creditor will need to segregate the social security funds from other monies available to satisfy the debt.

Appearances are required for the creditor to explain the scope of its request.

***Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.***

***IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.***

***FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).***

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 06/26/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CIV2202485

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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| <p>PLAINTIFF:      LELAND SPELMAN, ET<br/>AL</p>                     |  |
| <p>vs.</p>                                                           |  |
| <p>DEFENDANT:    STATE FARM GENERAL<br/>INSURANCE COMPANY, ET AL</p> |  |

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NATURE OF PROCEEDINGS: 1) MOTION – RELIEF- DISCOVERY FACILITATOR  
PROGRAM

2) MOTION - RECONSIDERATION

3) MOTION - STAY

**RULING**

There are three motions pending. Plaintiffs Leland Spelman and Linnea Carlson (“Plaintiffs”) filed a Motion for Relief from Deemed Admissions; Motion to Stay Summary Judgment Proceedings; and Motion for Reconsideration. The motions were filed on March 27, 2026. Defendant State Farm, et al., filed opposition briefs on June 11, 2026. Plaintiff filed reply briefs on June 15, 2026.

This matter was last called in this department on March 20, 2026, after the court granted Defendant’s Motion to Dismiss for Failure to Prosecute, and Motion to have the matters set forth in their Requests for Admission Deemed Admitted for Plaintiffs’ Failure to Respond.

Despite prevailing substantively on all issues, counsel for the Defendant indicated that State Farm was nevertheless willing to engage in good faith negotiations with the Plaintiffs to resolve the case. Unfortunately, it appears the settlement discussions were not fruitful. The parties appeared in court for a Case Management Conference on June 24, 2026, with State Farm representing that its settlement offer remains on the table.

The Court reconsiders its March 23, 2026, order granting Defendants State Farm General Insurance Company and Renee Waina’s (“Defendants”) motion to deem matters admitted as to Plaintiff Oscar Carlson/Estate of Oscar Carlson only, using its inherent authority to reconsider its own interim rulings on its own motion (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 840).

BACKGROUND